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Case Number: 25STCV37835 Hearing Date: August 27, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/27/2026

CASE NUMBER: 25STCV37835

CASE NAME: BOBAK FERDOSI vs ELECTRONIC SOURCE COMPANY, ...

MOVING PARTY: Defendants Electronic Source
Company, LLC; Suzan Harris

OPPOSING PARTY: Plaintiff Bobak Ferdosi

PROCEEDING: Demurrer TO FIRST AMENDED COMPLAINT

RULING SUMMARY: Defendants Electronic Source Company, LLC and Suzan Harris' Demurrer is sustained with ten days' leave to amend. The Court continues the Case Management Conference to _____, 2026, at 8:30AM, and sets an Order to Show Cause re Second Amended Complaint for the same date and time.

Background

On

December 29, 2025, plaintiff Bobak Ferdosi ("Plaintiff") filed a Complaint against defendants Electronic Source Company, LLC ("ESC"); Alyn Industries Holdings, Inc. ("AIH"); Alyn Industries, Inc. ("Alyn"); ADP TotalSource DE IV, Inc. ("ADP"); and Suzan Harris ("Harris" and, collectively, "Defendants").

On

March 16, 2026, Plaintiff filed his First Amended Complaint (“FAC”) against Defendants, alleging causes of action for (1) Discrimination (Gov. Code §§ 12940(a) and 12941) against ESC, AIH, Alyn, and ADP (collectively “Corporate Defendants”); (2) Failure to Accommodate against Corporate Defendants; (3) Failure to Engage in the Interactive Process (Gov. Code § 12940(n)) against Corporate Defendants; (4) Harassment (Gov. Code § 12940(j) against all defendants; (5) Retaliation against Corporate Defendants; (6) Failure to Prevent Discrimination, Harassment, and Retaliation (Gov. Code § 12940(k).)

Plaintiff

alleges that he was subjected to discrimination due to his age and disability of incontinence, and, that after several incidents, including at a customer meeting, Plaintiff’s employment was terminated.

On

April 15, 2026, ESC and Harris filed this Demurrer. On April 20, 2026, ADP filed a joinder to ESC and Harris’ Demurrer. On August 14, 2026, Plaintiff filed his Opposition. On August 20, 2026, ESC and Harris filed their Reply. On August 20, 2026, ADP filed a joinder to ESC and Harris’ Reply.

Demurrer

MEET AND CONFER

Before filing a demurrer or motion

to strike, the moving party is required to meet and confer with the party who filed the pleading demurred to, in person or telephonically, to determine whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. §§ 430.41, 435.5.)

This requirement has been met.

(See Decl. Ryan H. Weinstein ¶¶ 3-4.)

LEGAL

STANDARD

A.

Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc. § 430.30(a); Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

B.

Leave to Amend

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) “A trial court does not abuse its discretion when it sustains a demurrer without leave to amend if either (a) the facts and the nature of the claims are clear and no liability exists, or (b) it is probable from the nature of the defects and previous unsuccessful attempts to plead that the plaintiff cannot state a claim.” (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 889.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

DISCUSSION

A.

First through Third Causes of Action (Notice)

ESC and

Harris argue that Plaintiff’s claims for discrimination, failure to accommodate, and failure to engage in the interactive process, the First through Third Causes of Action, fail because Plaintiff did not allege that ESC or Harris knew

of his disability. ESC and Harris argue that a single incident is not enough to constitute notice of disability, citing in support *Scotch v. Art Inst. of Cal.* (2009) 173 Cal.App.4th 98 (“Scotch”), and Plaintiff’s disclosure to Marisol Ordonez (“Ordonez”) and other peer colleagues does not establish knowledge by or impose liability on ESC or Harris. ESC and Harris further assert that Plaintiff’s FAC fails to allege that Plaintiff requested an accommodation.

Plaintiff

contends that the FAC alleges that he had a disability based on bladder impairment and urinary incontinence and that his discussion of prostate cancer testing put Ordonez, Defendants’ Director of People and Culture, on notice that Plaintiff was experiencing urinary/prostate related medical issues. Plaintiff further contends that his allegations are sufficient as the FAC alleges Harris knew Plaintiff frequently changed into company polo shirts or wrapped one around his waist, and observed an incident of involuntary lost bladder control during a client meeting, and was present during a shared ride-share after the incident where the odor remained noticeable. Plaintiff argues that he has met the requirements at the pleading stage under California case precedent.

ESC and

Harris reiterate that only one incident has been alleged, that the prostate cancer testing did not provide notice of an incontinence issue, particularly since the test came back negative, and Plaintiff’s cited cases are distinguished due to the allegations in the FAC.

The

legal standards for the three claims at issue are as follows:

1.

Discrimination – “A prima facie case of disability discrimination under FEHA requires the employee to show he or she (1) suffered from a disability, (2) was otherwise qualified to do his or her job, and (3) was subjected to adverse employment action because of the disability.” (*Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 458.)

2.

Failure to accommodate – “The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the

position, and (3) the employer failed to reasonably accommodate the plaintiff's disability. [Citation.]" (Scotch, supra, 173 Cal.App.4th 986 at 1009-1010.)

3.

Failure to Engage in the Interactive Process – "To prevail on a claim under section 12940, subdivision (n) for failure to engage in the interactive process, an employee must identify a reasonable accommodation that would have been available at the time the interactive process should have occurred. An employee cannot necessarily be expected to identify and request all possible accommodations during the interactive process itself because ' "[e]mployees do not have at their disposal the extensive information concerning possible alternative positions or possible accommodations which employers have....' " ' [Citation.]" (Id. at 1018.)

As ESC and Harris point out, "[w]hile knowledge of the disability can be inferred from the circumstances, knowledge will only be imputed to the employer when the fact of disability is the only reasonable interpretation of the known facts. 'Vague or conclusory statements revealing an unspecified incapacity are not sufficient to put an employer on notice of its obligations under the [FEHA].' " (Avila v. Continental Airlines, Inc. (2008) 165 Cal.App.4th 1237, 1248 [internal citations omitted].) This notice must be directed at a decision maker. (Id. at 1251 ["Evidence that a decision maker learned of a plaintiff's disability after deciding to take adverse employment action is not probative of whether the decision maker was aware of the plaintiff's disability when he or she made the decision"].)

Plaintiff allegations are not that he notified Ordonez of his disability, but that he notified Ordonez of prostate cancer testing. (FAC ¶ 23.) While Plaintiff argues that prostate cancer testing shows that he had urinary issues, this is not alleged, and the Court is qualified to determine the connection between the two issues.

Regarding the urinary issues, Plaintiff alleges he told Information and Technology Manager Mark Heitt (FAC ¶ 27) and Supply Chain Manager Murioto Kusama (id. ¶ 30). Plaintiff alleges he told Contract Manager Kelli Thomas that he was experiencing medical issues and had concerns with his healthcare provider. (Id. ¶ 33.) With regards to Harris, only one incident is alleged – involuntary bladder control at a client meeting. (See

id. ¶¶ 38-39.)

The factual allegations do not support an allegation that ESC or Harris had knowledge of Plaintiff's urinary disability. Regarding the age related claims, "[i]n the context of the usual age discrimination case, a prima facie case of age discrimination arises when the employee shows that: (1) at the time of the adverse employment action, the employee was 40 years of age or older; (2) some adverse employment action was taken against the employee; (3) at the time of the adverse action the employee was satisfactorily performing his or her job; and (4) the employee was replaced in his or her position by a significantly younger person." (Arnold v. Dignity Health (2020) 53 Cal. App. 5th 412, 424.) The FAC is silent as to whether Plaintiff was satisfactorily performing his job.

Accordingly, the Demurrer to the First Cause of Action (Discrimination (Gov. Code §§ 12940(a) and 12941) is sustained with leave to amend.

Gov. Code § 12040(m) prevents an employer from (1) failing to make reasonable accommodation for the known physical or mental disability of an applicant or employee, and (2) retaliating or otherwise discriminating against a person for requesting accommodation under this subdivision, regardless of whether the request was granted. As explained above, the FAC does not adequately allege notice to Defendants of Plaintiff's physical disability is discussed above.

Accordingly, the Demurrer on the basis of notice to the Second Cause of Action (Failure to Accommodate (Gov. Code § 12940(m)) is sustained with leave to amend.

Gov. Code § 12040(n) requires an employer to engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition. However, as discussed above, the FAC fails to allege notice.

Accordingly, the Demurrer on the basis of notice as to the Third Cause of Action (Failure to Engage in the Interactive Process (Gov. Code § 12940(n)) is sustained with leave to amend.

B.

Fourth Cause of Action (Harassment
(Gov. Code § 12940(j)))

ESC and Harris argue that Harris' actions constitute the exercise of standard management prerogatives such as inquiries regarding Plaintiff's age and retirement plans, a complimentary comment about a younger third-party candidate. ESC and Harris contend that there is no connection alleged between the statements from Harris and Plaintiff's condition and Harris' conduct was not severe and pervasive to create an abusive environment.

Plaintiff argues that case precedent holds that where managerial acts and personnel decisions may have a secondary effect of communicating a hostile message, such acts and decisions may be taken as evidence of a FEHA harassment claim.

ESC and Harris reiterate that the actions alleged are personnel management actions and non-actionable, and the remaining allegations are not severe and pervasive.

Both parties agree that Roby McKesson Corp. (2009) 47 Cal.4th 686 ("Roby") is instructive. In Roby, the Court explained:

Roby's harassment claim, by contrast, sought compensation for hostile social interactions in the workplace that affected the workplace environment because of the offensive message they conveyed to Roby. These harassing actions included Schoener's demeaning comments to Roby about her body odor [fn] 10 and arm sores, Schoener's refusal to respond to Roby's greetings, Schoener's demeaning facial expressions and gestures toward Roby, and Schoener's disparate treatment of Roby in handing out small gifts. None of these events can fairly be characterized as an official employment action. None involved Schoener's exercising the authority that McKesson had delegated to her so as to cause McKesson, in its corporate capacity, to take some action with respect to Roby. Rather, these were events that were unrelated to Schoener's managerial role, engaged in for her own purposes.

Miller, however, makes clear that some official

employment actions done in furtherance of a supervisor's managerial role can also have a secondary effect of communicating a hostile message. This occurs when the actions establish a widespread pattern of bias. (Miller, *supra*, 36 Cal.4th at p. 466.) Here, some actions that Schoener took with respect to Roby are best characterized as official employment actions rather than hostile social interactions in the workplace, but they may have contributed to the hostile message that Schoener was expressing to Roby in other, more explicit ways. These would include Schoener's shunning of Roby during staff meetings, Schoener's belittling of Roby's job, and Schoener's reprimands of Roby in front of Roby's coworkers. Moreover, acts of discrimination can provide evidentiary support for a harassment claim by establishing discriminatory animus on the part of the manager responsible for the discrimination, thereby permitting the inference that rude comments or behavior by that same manager were similarly motivated by discriminatory animus.

Fn 10: The Court of Appeal suggested that supervisor Schoener's demeaning comments about Roby's body odor were necessary personnel management actions, not acts of harassment, because Schoener needed to take action in response to the complaints of other employees. (See *Hannoon v. Fawn Eng'g Corp.* (8th Cir. 2003) 324 F.3d 1041, 1047 [Title VII case].) Here, however, the evidence supports the jury's conclusion that Schoener handled the matter in a way that was unnecessarily demeaning, including reprimanding Roby in front of coworkers and telling Roby "to take more showers." It was the demeaning manner in which Schoener addressed this issue that constituted the harassment.

(Roby, *supra*, 47 Cal.4th at 708-09.)

Here, the actions that comprise the harassment claim are Harris's actions (FAC ¶ 67):

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On or about January 10, 2025, HARRIS entered Mr. Ferdosi's office and, without any prior discussion regarding retirement, unexpectedly asked him when he planned to retire. Mr. Ferdosi was offended by being asked about retirement. (Id. ¶ 26.)

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In or about February 2025, HARRIS asked Mr.

Ferdosi his age. Mr. Ferdosi was offended that HARRIS had asked him such a personal question, but Mr. Ferdosi informed her that he would be 60 years old in July 2025. (Id. ¶ 31.)

Later that month, Mr. Ferdosi and HARRIS engaged in a conversation regarding the average ages of their customers. During that exchange, Mr. Ferdosi proudly recalled being the youngest attendee at a “Lunch and Learn” event with prime defense contractors, suppliers, and potential customers in or around 2015 or 2016. Rather than acknowledging his experience or contribution, HARRIS responded dismissively, stating, “It’s not that way anymore.” Mr. Ferdosi understood her comment to signal a shift in how he was perceived due to his age, which contributed to a growing sense that he was being marginalized in the workplace on that basis. (Id. ¶ 32.)

On or about March 2025, HARRIS shared her thoughts with Mr. Ferdosi regarding candidates she had recently interviewed, noting that the applicants tended to be “in their thirties.” In discussing one candidate in particular, Alex Turner, HARRIS remarked that she believed he was a strong candidate because he was “young, bright, and good with math.” (Id. ¶ 34.) This was reiterated by Harris upon Turner’s hiring. (Id. ¶ 35.)

In or about late April 2025, Mr. Ferdosi, HARRIS, and Program Manager Josh Weaver were discussing plans for the team’s upcoming business trip to Sacramento, California, to visit a client, Teledyne Technologies Incorporated. During that conversation, Mr. Ferdosi asked HARRIS whether he could wear Defendants’ company polo shirts for the visit. Unexpectedly, HARRIS replied, “No polo shirt – dress shirt and a jacket,” and stated that this dress requirement would apply to all customer meetings going forward. (Id. ¶ 36.)

The meeting event in which Plaintiff lost bladder control and the carpool that followed. (Id. ¶¶ 38-39.)

After Mr. Ferdosi’s repeated attempts to communicate the [database] issue to Mr. Sorby went unanswered, he notified

HARRIS of the problem. Given the scale of critical information lost, Mr. Ferdosi became emotional during the conversation. HARRIS responded dismissively, stating, "We'll fix it." Despite this assurance, the data was never recovered. Mr. Ferdosi is informed and believes, and thereon alleges, that Defendants' alteration of his Salesforce database was deliberate, and was conducted in anticipation of his termination. (Id. ¶ 42.)

"To establish a prima facie case of a hostile work environment, [the plaintiff] must show that (1) [plaintiff] is a member of a protected class; (2) [plaintiff] was subjected to unwelcome harassment; (3) the harassment was based on [plaintiff's] protected status; (4) the harassment unreasonably interfered with [plaintiff's] work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment." (Ortiz v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 568, 581.)

The pleadings have combined the issue of age and physical disability. (FAC ¶ 67.) While Roby supports a jury determination of whether the alleged actions, even if they are managerial, could have a secondary effect and establish a widespread pattern of bias, there is no allegation that the harassment unreasonably interfered with Plaintiff's work performance, a necessary element. (See id. at Factual Allegations [generally] and ¶¶ 66-70.)

Accordingly, the Demurrer to the Fourth Cause of Action (Harassment) is sustained with leave to amend.

C.

Fifth Cause of Action
(Retaliation)

"[I]n order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (Yanowitz v. L'Oreal USA, Inc. (2005) 36Cal.4th 1028, 1042.)

The retaliation claim is based on alleged disclosure of Plaintiff's disabilities. (FAC ¶ 72.) First, it is unclear

whether Plaintiff engaged in a protected activity and, for the same reasons discussed above, it is unclear whether a causal link existed between protected activity and the employer's actions. Specifically, " '[s]tanding alone, an employee's unarticulated belief that an employer is engaging in discrimination will not suffice to establish protected conduct for the purposes of establishing a prima facie case of retaliation, where there is no evidence the employer knew that the employee's opposition was based upon a reasonable belief that the employer was engaging in discrimination.'"[C]omplaints about personal grievances or vague or conclusory remarks that fail to put an employer on notice as to what conduct it should investigate will not suffice to establish protected conduct.' [¶] But employees need not explicitly and directly inform their employer that they believe the employer's conduct was discriminatory or otherwise forbidden by FEHA." (Castro-Ramirez v. Dependable Highway Express, Inc. (2016) 2 Cal.App.5th 1028, 1046.)

Accordingly, the Demurrer to the Fifth Cause of Action (Retaliation) is sustained with leave to amend.

D.

Sixth Cause of Action (Failure to Prevent Discrimination, Harassment, and Retaliation (Gov. Code § 12940(k)) and Seventh Cause of Action (Wrongful Discharge in Violation of Public Policy)

ESC and Harris argue that these claims are derivative and, as such, fail.

Plaintiff contends that he has adequately pled his FEHA claims and, as such, these claims do not fail.

As discussed above, there are deficiencies with Plaintiff's FEHA claims. As the Sixth and Seventh Causes of Action are derivative of the FEHA claims, a defect exists on the face of the pleadings.

For the reasons explained above, the Demurrer to the Sixth Cause of Action (Failure to Prevent Discrimination, Harassment, and Retaliation (Gov. Code § 12940(k)) and Seventh Cause of Action (Wrongful Discharge in Violation of Public Policy) is sustained with leave to amend.

Conclusion

Defendants

Electronic Source Company, LLC and Suzan Harris' Demurrer is sustained with ten days' leave to amend. The Court continues the Case Management Conference to _____, 2026, at 8:30AM, and sets an Order to Show Cause re Second Amended Complaint for the same date and time.

Date: 08/27/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court